



Manage and maintain workplace relations

D1.HML.CL10.17

D1.HRM.CL9.15

D2.TRM.CL9.14

Assessor Manual



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Assessor Manual

Project Base

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Table of contents

Competency Based Assessment (CBA) – An Introduction for Assessors.....	1
Competency standard.....	11
Oral questions.....	19
Written questions	23
Answers to written questions	37
Observation checklist.....	59
Third Party Statement.....	63
Competency recording sheet	65

Competency Based Assessment (CBA) – An Introduction for Assessors

Assessment is the process of identifying a participant's current knowledge, skills and attitudes sets against all elements of competency within a unit of competency.

Suggested Assessment Methods

For each unit of competency a number of assessment tools have been identified including:

- Work Projects
- Oral Questions
- Written Questions
- Third Party Statements
- Observation Checklists.

Instructions and Evidence Recording Sheets have been identified in this Assessment Manual for use by Assessors.

Alternative Assessment Methods

Whilst the above mentioned assessment methods are suggested assessment methods, the assessor may use an alternate method of assessment taking into account:

- a) The nature of the unit
- b) The strengths of participants
- c) The number of participants in the class
- d) Time required to complete assessments
- e) Time dedicated to assessment
- f) Equipment and resources required.

Alternate assessment methods include:

- Practical demonstrations
- Practical demonstrations in simulated work conditions
- Problem solving
- Portfolios of evidence
- Critical incident reports
- Journals
- Oral presentations
- Interviews
- Videos
- Visuals/slides/audiotapes

- Case studies
- Log books
- Projects and Role plays
- Group projects
- Recognition of Prior Learning.

Whilst there is no specific instruction or evidence collection documents for all the alternative assessment methods, assessors can record competency in the 'Other' section within the 'Competency Recording Sheet'.

Selection of Assessment Methods

Each assessor will determine the combination of Assessment Methods to be used to determine Competency for each Competency Unit on a student by student basis.

'Sufficient' evidence to support the 'Pass Competent'/'Not Yet Competent' decision must be captured.

In practice this means a minimum of 2 – 3 Assessment Methods for each candidate for each Competency Element is suggested.

At least one method should provide evidence of practical demonstration of competence.

The following assessment methods deemed to provide evidence of practical demonstration of competence include:

- Practical Work Projects
- Third Party Statement
- Observation Checklist.

Assessing Competency

Competency based assessment does not award grades, but simply identifies if the participant has the knowledge, skills and attitudes to undertake the required task to the specified standard.

Therefore, when assessing competency, an assessor has two possible results that can be awarded:

- 'Pass Competent' (PC)
- 'Not Yet Competent' (NYC).

Pass Competent (PC)

If the participant is able to successfully answer or demonstrate what is required, to the expected standards of the performance criteria, they will be deemed as 'Pass Competent' (PC).

The assessor will award a 'Pass Competent' (PC) if they feel the participant has the necessary knowledge, skills and attitudes in all assessment tasks for a unit.

Not Yet Competent' (NYC)

If the participant is unable to answer or demonstrate competency to the desired standard, they will be deemed to be 'Not Yet Competent' (NYC).

This does not mean the participant will need to complete all the assessment tasks again. The focus will be on the specific assessment tasks that were not performed to the expected standards.

The participant may be required to:

- a) Undertake further training or instruction
- b) Undertake the assessment task again until they are deemed to be 'Pass Competent'.

Regional Qualifications Framework and Skills Recognition System

The 'Regional Qualifications Framework and Skills Recognition System', also known as the 'RQFSRS' is the overriding educational framework for the ASEAN region.

The purpose of this framework is to provide:

- A standardised teaching and assessment framework
- Mutual recognition of participant achievement across the ASEAN region. This includes achievement in individual Units of Competency or qualifications as a whole.

The role of the 'RQFSRS' is to provide, ensure and maintain 'quality assurance' across all countries and educational providers across the ASEAN region.

Recognition of Prior Learning (RPL)

Recognition of Prior Learning is the process that gives current industry professionals who do not have a formal qualification, the opportunity to benchmark their extensive skills and experience against the standards set out in each unit of competency/subject.

This process is a learning and assessment pathway which encompasses:

- Recognition of Current Competencies (RCC)
- Skills auditing
- Gap analysis and training
- Credit transfer.

Code of Practice for Assessors

This Code of Practice provides:

- Assessors with direction on the standard of practice expected of them
- Candidates with assurance of the standards of practice expected of assessors
- Employers with assurance of the standards maintained in the conduct of assessment.

The Code detailed below is based on the International Code of Ethics and Practice (The National Council for Measurement in Education [NCME]):

- The differing needs and requirements of the person being assessed, the local enterprise and/or industry are identified and handled with sensitivity
- Potential forms of conflict of interest in the assessment process and/or outcomes are identified and appropriate referrals are made, if necessary
- All forms of harassment are avoided throughout the planning, conducting, reviewing and reporting of the assessment outcomes

- The rights of the candidate are protected during and after the assessment
- Personal and interpersonal factors that are not relevant to the assessment of competency must not influence the assessment outcomes
- The candidate is made aware of rights and process of appeal
- Evidence that is gathered during the assessment is verified for validity, reliability, authenticity, sufficiency and currency
- Assessment decisions are based on available evidence that can be produced and verified by another assessor
- Assessments are conducted within the boundaries of the assessment system policies and procedures
- Formal agreement is obtained from both the candidate and the assessor that the assessment was carried out in accordance with agreed procedures
- The candidate is informed of all assessment reporting processes prior to the assessment
- The candidate is informed of all known potential consequences of decisions arising from an assessment, prior to the assessment
- Confidentiality is maintained regarding assessment results
- The assessment results are used consistently with the purposes explained to the candidate
- Opportunities are created for technical assistance in planning, conducting and reviewing assessment procedures and outcomes.

Instructions and Checklist for Assessors

Instructions

General instructions for the assessment:

- Assessment should be conducted at a scheduled time that has been notified to the candidate
- Facilitators must ensure participants are made aware of the need to complete assessments and attend assessment sessions
- If a participant is unable to attend a scheduled session, they must make arrangements with the Assessor to undertake the assessment at an alternative time
- At the end of the assessment the Assessor must give feedback and advise the participant on their PC/NYC status
- Complete the relevant documentation and submit to the appropriate department.

Preparation

- Gain familiarity with the Unit of Competency, Elements of Competency and the Performance Criteria expected
- Study details assessment documentation and requirements
- Brief candidate regarding all assessment criteria and requirements.

Briefing Checklist

- Begin the assessment by implementing the following checklist and then invite the candidate to proceed with assessment.

Checklist for Assessors

Prior to the assessment I have:	Tick (✓)	Remarks
Ensured the candidate is informed about the venue and schedule of assessment.		
Received current copies of the performance criteria to be assessed, assessment plan, evidence gathering plan, assessment checklist, appeal form and the company's standard operating procedures (SOP).		
Reviewed the performance criteria and evidence plan to ensure I clearly understood the instructions and the requirements of the assessment process.		
Identified and accommodated any special needs of the candidate.		
Checked the set-up and resources for the assessment.		
During the assessment I have:		
Introduced myself and confirmed identities of candidates.		
Put candidates at ease by being friendly and helpful.		
Explained to candidates the purpose, context and benefits of the assessment.		
Ensured candidates understood the assessment process and all attendant procedures.		
Provided candidates with an overview of performance criteria to be assessed.		
Explained the results reporting procedure.		
Encouraged candidates to seek clarifications if in doubt.		
Asked candidates for feedback on the assessment.		
Explained legal, safety and ethical issues, if applicable.		
After the assessment I have:		
Ensured candidate is given constructive feedback.		
Completed and signed the assessment record.		
Thanked candidate for participating in the assessment.		

Instructions for Recording Competency

Specifications for Recording Competency

The following specifications apply to the preparation of Evidence Gathering Plans:

- A Competency Recording Sheet must be prepared for each candidate to ensure and demonstrate all Performance Criteria and Competency Elements are appropriately assessed. This Sheet indicates how the Assessor will gather evidence during their assessment of each candidate
- This Competency Recording Sheet is located at the end of the Assessment Plan
- It is the overriding document to record competency
- The Assessor may vary the Competency Recording Sheet to accommodate practical and individual candidate and/or workplace needs
- Assessor must place a tick (✓) in the 'Assessment Method' columns to identify the methods of assessment to be used for each candidate
- Multiple Competency Elements/Performance Criteria may be assessed at the one time, where appropriate
- The assessor and participant should sign and date the Competency Recording Sheet, when all forms of evidence and assessment have been completed
- The assessor may provide and feedback or clarify questions which the participant may have in regards to the assessment grade or findings
- All documents used to capture evidence must be retained, and attached to the Competency Recording Sheet for each candidate for each Competency Unit.

Instructions for Different Assessment Methods

Specifications for Work Project Assessment

These guidelines concern the use of work projects.

The work projects identified in the Training Manuals involve a range of tasks, to be performed at the discretion of the Assessor.

Work project tasks can be completed through any form of assessment as identified in the Trainer and Trainee Manuals and stated at the start of this section.

Assessors should follow these guidelines:

- Review the Work Projects at the end of each 'Element of Competency' in the Trainee Manual to ensure you understand the content and what is expected
- Prepare sufficient resources for the completion of work activities including:
 - Time – whether in scheduled delivery hours or suggested time participants to spend outside of class hours
 - Resources – this may involve technical equipment, computer, internet access, stationery and other supplementary materials and documents
- Prepare assessment location (if done in class) making it conducive to assessment
- Explain Work Projects assessment to candidate, at the start of each Element of Competency. This ensures that participants are aware of what is expected and can collate information as delivery takes place

- Assessors can use the following phrase as a guide (where an 'X' is identified, please input appropriate information):
 "At the end of each Element of Competency there are Work Projects which must be completed. These projects require different tasks that must be completed.
 These work projects are part of the formal assessment for the unit of competency titled X:
 ▪ You are required to complete these activities:
 a) *Using the 'X' method of assessment*
 b) *At 'X' location*
 c) *You will have 'X time period' for this assessment*
 ▪ You are required to compile information in a format that you feel is appropriate to the assessment
 ▪ Do you have any questions about this assessment?"
- Commence Work Project assessment:
 - The assessor may give time for participants to review the questions at this time to ensure they understand the nature of the questions. The assessor may need to clarify questions
 - Participants complete work projects in the most appropriate format
 - Participants must submit Work Project evidence to the assessor before the scheduled due date
- Assessor must assess the participant's evidence against the competency standards specified in each Element of Competency and their own understanding. The assessor can determine if the participant has provided evidence to a 'competent' standard
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Oral Question Assessment

These guidelines concern the use of oral questioning.

Assessors should follow these guidelines.

- Prepare Assessment Record for Oral Questioning. One record for each candidate:
 - Enter Student name
 - Enter Assessor name
 - Enter Location
- Familiarise self with Questions to be asked
- Prepare assessment location (table and chairs) making it conducive to assessment
- Explain Oral Questioning assessment to candidate, using the following phrase as a guide (where a 'X' is identified, please input appropriate information):
"These oral questions are part of the formal assessment for the unit of competency titled X.

There are X questions and you are required to answer all of them to the best of your ability and I will record whether or not you have answered correctly.

We have 60 minutes for this assessment.

- I will give you feedback at the end of the assessment
- Do you have any questions about this assessment?”
- Commence Oral Questioning assessment:
 - Complete Assessment Record for the Oral Questioning by:
 - a) Ticking PC or NYC, as appropriate
 - b) Entering ‘Remarks’ as required
 - c) Completing Oral Questioning within 60 minutes
- Complete Oral Questioning and provide feedback to candidate
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Written Question Assessment

These guidelines concern the use of written questioning.

Assessors should follow these guidelines:

- Familiarise self with Questions and Answers provided
- Print and distribute copies of ‘Written Questions’ for participants. Ideally this should take place with adequate time for participants to answer all questions before the expected due date
- Explain Written Questioning assessment to candidate, using the following phrase as a guide (where a ‘X’ is identified, please input appropriate information):

“These written questions are part of the formal assessment for the unit of competency titled X.

There are X questions and you are required to answer all of them to the best of your ability.

You may refer to your subject materials, however where possible try to utilise your existing knowledge when answering questions.

Where you are unsure of questions, please ask the Assessor for further instruction. This may be answering the question orally or asking the assessor to redefine the question.

We have X time for this assessment:

- The due date for completion of this assessment is X
- On this date you must forward the completed questions to the assessor by X time on the date of X
- Do you have any questions about this assessment?”
- The assessor may give time for participants to review the questions at this time to ensure they understand the nature of the questions. The assessor may need to clarify questions
- Participants may record written answers (where possible)
- Participants must submit the written answers to the assessor before the scheduled due date

- Assessor must assess the participant's written answers against the model answers provided as a guide, or their own understanding. The assessor can determine if the participant has answered the questions to a 'competent' standard
- Transcribe results/details to Competency Recording Sheet
- Forward/file assessment record.

Specifications for Observation Checklist

These specifications apply to the use of the Observation Checklist in determining competency for candidates.

Only an approved assessor is authorised to complete the Observation Checklist.

The assessor is required to observe the participant, ideally in a simulated environment or their practical workplace setting and record their performance (or otherwise) of the competencies listed on the Observation Checklist for the Competency Unit.

To complete the Observation Checklist the Assessor must:

- Insert name of candidate
- Insert assessor name
- Insert identify of location where observations are being undertaken
- Insert date/s of observations – may be single date or multiple dates
- Place a tick in either the 'Yes' or 'No' box for each listed Performance Criteria to indicate the candidate has demonstrated/not demonstrated that skill
- Provide written (and verbal) feedback to candidate – as/if appropriate
- Sign and date the form
- Present form to candidate for them to sign and date
- Transcribe results/details to Competency Recording Sheet for candidate
- Forward/file Observation Checklist.

This source of evidence combines with other forms of assessment to assist in determining the 'Pass Competent' or 'Not Yet Competent' decision for the participant.

Specifications for Third Party Statement

These specifications relate to the use of a relevant workplace person to assist in determining competency for candidates.

The Third Party Statement is to be supplied by the assessor to a person in the workplace who supervises and/or works closely with the participant.

This may be their Supervisor, the venue manager, the Department Manager or similar.

The Third Party Statement asks the Supervisor to record what they believe to be the competencies of the participant based on their workplace experience of the participant. This experience may be gained through observation of their workplace performance, feedback from others, inspection of candidate's work etc.

A meeting must take place between the Assessor and the Third Party to explain and demonstrate the use of the Third Party Statement.

To complete the Third Party Verification Statement the Assessor must:

- Insert candidate name
- Insert name and contact details of the Third Party
- Tick the box to indicate the relationship of the Third Party to the candidate
- Present the partially completed form to the Third Party for them to finalise
- Collect the completed form from the Third Party
- Transcribe results/details to Competency Recording Sheet for candidate
- Forward/file Third Party Statement.

The Third Party must:

- Record their belief regarding candidate ability/competency as either:
 - Pass Competent = Yes
 - Not Yet Competent = No
 - Unsure about whether candidate is competent or not = Not Sure
- Meet briefly with the assessor to discuss and/or clarify the form.

This source of evidence combines with other forms of assessment to assist in determining the 'Pass Competent' or 'Not Yet Competent' decision for the candidate.

A separate Third Party Statement is required for each Competency Unit undertaken by the candidate.

Competency standard

UNIT TITLE: MANAGE AND MAINTAIN WORKPLACE RELATIONS		NOMINAL HOURS: 70
UNIT NUMBER: D1.HML.CL10.17 D1.HRM.CL9.15 D2.TRM.CL9.14		
UNIT DESCRIPTOR: This unit deals with the skills and knowledge required to manage and maintain workplace relations in a range of settings within the in the hotel industries workplace context		
ELEMENTS AND PERFORMANCE CRITERIA		UNIT VARIABLE AND ASSESSMENT GUIDE
Element 1: Build a positive industrial relations climate 1.1 Provide employees with accurate and impartial <i>information on industrial matters</i> likely to affect them 1.2 Identify <i>workplace changes or issues</i> which may cause <i>industrial unrest</i> promptly and take <i>appropriate action</i> 1.3 Identify <i>potential causes</i> of industrial unrest in <i>external environments</i> promptly and take appropriate action 1.4 Apply <i>conditions of employment</i> in accordance with relevant legislation and industrial awards/agreements 1.5 Implement mechanisms for consulting with staff and facilitating two-way communication		Unit Variables The Unit Variables provide advice to interpret the scope and context of this unit of competence, allowing for differences between enterprises and workplaces. It relates to the unit as a whole and facilitates holistic assessment This unit applies to managing workplace relations within the labour divisions of the hotel and travel industries and may include: 1. Front Office 2. Housekeeping 3. Food and Beverage Service 4. Food Production 5. Travel Agencies 6. Tour Operation <i>Information</i> may relate to: • Conditions of employment • Wages

1.6 Ensure <i>induction and training initiatives</i> are used effectively to develop a <i>competent workforce</i> 1.7 Utilise <i>consultation processes</i> for the identification and resolution of grievances and the implementation of new work practices Element 2: Implement formal industrial procedures 2.1 Contribute to the development of <i>formal industrial procedures</i> in consultation with relevant parties 2.2 Use <i>agreed procedures</i> to resolve employee relations in accordance with enterprise policy and legal requirements 2.3 Monitor agreed processes and make appropriate adjustments in consultation with relevant parties 2.4 Identify the need for and access <i>specialist assistance</i> in industrial relations matters when appropriate	• Health and safety • Industrial matters may relate to: • Things affecting or relating to work done • Changes in working arrangements. <i>Workplace changes or issues</i> may relate to: • Things affecting or relating to work done • Changes in working arrangements. <i>Industrial unrest</i> may relate to: • Workforce protests such as strike, go-slow, and bans against current rates of pay and working conditions. <i>Appropriate action</i> may be related to: • Initiation of consultation processes • Investigating presented issues • Writing reports and making recommendations to colleagues, senior management • Involving specialist assistance. <i>Potential causes</i> may be related to: • Changes workplace processes • Changes in shift arrangements • Perceived or actual inequity in conditions of employment. <i>External environments:</i> • Union activity • Labour agreements.
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	<i>Conditions of employment</i> may include: • Salary/wages • Penalty rates • Holiday and leave entitlements • Superannuation • Hours of work • Grievance procedures. <i>Induction and training</i> initiatives • Health and safety • Employee orientation to workplace • Procedures and process applicable to job role • Competent workforce • Multi-skilled • Skilled • Educated. <i>Consultation processes</i> may involve: • Staff • Unions • Employer groups • Boards of management • Government.
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	<i>Formal industrial procedures</i> may include: • Grievance procedures • Dispute resolutions procedures • Mediation • Conciliation • Arbitration. <i>Agreed procedures</i> may relate to: • Grievance procedures • Equity procedures • Diversity procedures. <i>Specialist assistance</i> may include: • Legal advice • Specialist industrial advocate advice. Assessment Guide The following skills and knowledge must be assessed as part of this unit: • Knowledge of the industrial relations system including legal obligations of employers • Knowledge of the role of specific unions in the travel and hospitality industries • Knowledge of the role of specific employer groups in the travel and hospitality industries • Knowledge of provisions of labour awards and agreements as appropriate to the travel and hospitality industries • Knowledge of procedures for creating workplace agreements • Knowledge of procedures and specific communication skills for formal counselling, grievances and industrial dispute resolution.
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Linkages To Other Units

- Manage and resolve conflict situations
- Monitor workplace operations
- Lead and manage people
- Manage workplace diversity.

Critical Aspects of Assessment

Evidence of the following is essential:

- Knowledge of industrial relations issues, procedures and regulations as they apply to particular sectors
- Demonstrated ability to interpret labour awards and agreements
- Demonstrated ability to foster the development of a positive industrial relations climate
- Consistency of performance across a range of situations that demonstrates knowledge, understanding and skill in implementing the principles and practices of managing workplace relations.

Context of Assessment

This unit may be assessed on or off the job

- Assessment should include practical demonstration of the ability to manage and maintain workplace relations either in the workplace or through a simulation activity, supported by a range of methods to assess underpinning knowledge
- Assessment must relate to the individual's work area, job role and area of responsibility
- Assessment must include project or work activities that allow the candidate to respond to multiple and varying workplace issues relevant to work area, job role and area of responsibility that allow the candidate to demonstrate knowledge and awareness of industrial relations in the workplace and how to manage such issues.

	Resource Implications Training and assessment to include access to a real or simulated workplace; and access to workplace standards, procedures, policies, guidelines, tools and equipment. Assessment Methods The following methods may be used to assess competency for this unit: • Case studies • Observation of practical candidate performance • Oral and written questions • Portfolio evidence • Problem solving • Role plays • Third party reports completed by a supervisor • Project and assignment work. Key Competencies in this Unit <i>Level 1 = competence to undertake tasks effectively</i> <i>Level 2 = competence to manage tasks</i> <i>Level 3 = competence to use concepts for evaluating</i>
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	Key Competencies	Level	Examples
	Collecting, organising and analysing information	3	Scan internal and external environments to identify and analyse potential causes of industrial unrest
	Communicating ideas and information	2	Conduct a staff briefing on new work practices
	Planning and organising activities	2	Organise consultation sessions
	Working with others and in teams	3	Hold informal consultations with staff members to resolve a potential industrial problem
	Using mathematical ideas and techniques	2	Calculate the cost of workplace agreements
	Solving problems	3	Devise and implement an approach to a serious staff disciplinary matter
	Using technology	-	

Oral questions

Student name	
Assessor name	
Location/venue	
Unit of competency	Manage and maintain workplace relations D1.HML.CL10.17 D1.HRM.CL9.15 D2.TRM.CL9.14
Instructions	1. Ask student questions from the attached list to confirm knowledge, as necessary 2. Place tick in boxes to reflect student achievement (Pass Competent 'PC' or Not Yet Competent 'NYC') 3. Write short-form student answer in the space provided for each question.

Questions	Response	
	PC	NYC
1. Give me an example of a situation where you have provided employees information on industrial matters likely to affect them: what was the issue? What information did you provide? How? Where?	☐	☐
2. Describe a situation where you identified an internal workplace issue with the potential to cause industrial unrest and took action to address it.	☐	☐

Questions	Response	
	PC	NYC
3. Tell me about how you identified an external issue with the potential to cause industrial unrest and took action to address it.	☐	☐
4. Identify three conditions of employment you have to apply; how did you become aware of these and what do you do to ensure they are applied legitimately/correctly?	☐	☐
5. What do you do to consult effectively with staff in the workplace to underpin/support a positive industrial relations climate?	☐	☐

Questions	Response	
	PC	NYC
6. What steps do you take to ensure effective induction and training are implemented in the workplace?	☐	☐
7. Describe the consultation processes you have used to identify and resolve grievances.	☐	☐
8. Describe your contributions to the development of formal industrial procedures.	☐	☐

Questions	Response	
	PC	NYC
9. Tell me of the procedures you have applied to resolve an employee relations issue in the workplace.	☐	☐
10. What monitoring activities do you use for monitoring formal and agreed industrial processes in the workplace?	☐	☐
11. Tell me how you identify the need for specialist assistance with industrial relations issues; who might these specialists be and how would you access them?	☐	☐

Written questions

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Student Name: _____

Answer all the following questions and submit to your Trainer.

1. The ASEAN Ministers of Labour have adopted a set of 'Guidelines on Good Industrial Relations Practice': list the nine headings/topics in these Guidelines.

2. From the headings identified in your answer to the previous question, select and expand on two of these.

3. In your own words explain what is meant by 'Conditions of Employment'.

4. Identify eight examples of 'Conditions of Employment'.

5. From the examples identified in your answer to the previous question, select and expand on two of these.

6. What is a 'Letter of Offer', what does one contain and why is it used?

7. Identify 10 examples of documentation which may be contained in an 'Employee File'.

8. What two documents are combined/contained in a 'Job Statement'?

9. In your own explain the term 'industrial matters'.

10. Describe three ways managers and supervisors can source details of what is required in relation to employment and industrial relations.

11. In your own words define 'industrial unrest'.

12. Give six examples of 'industrial action' employees may take.

13. Identify four possible generic reasons for industrial unrest.

14. Describe four ways managers and supervisors can or will become aware of industrial unrest in a workplace.

15. Identify three keys when responding to industrial unrest.

16. Describe four possible actions management might take in response to industrial action by employees.

17. List six strategies for identifying possible external causes of industrial unrest.

18. What are the three basic options for responding to identified external issues which may cause industrial unrest?

19. Describe five activities management might engage in when planning and preparing to deal with an external issue is judged to impact in the short-to-mid term future on the business.

20. Identify five standard ways of determining relevant conditions of employment for a workplace.

21. List three generic actions to make sure all 'Conditions of Employment' requirements are being adhered in a workplace.

22. Describe four possible outcomes if an organisation fails to implement the promised/stated (legally imposed) conditions of employment for their workers.

23. Differentiate between 'consultation' and 'communication'.

24. Explain why 'two-way communication' is preferable to 'one-way communication' in terms of workplace/industrial relations.

25. Name three practical strategies for implementing useful workplace consultation.

26. List six options for facilitating effective two-way communication in the workplace.

27. Name six topics which may be covered in the 'generic' section of a workplace 'Induction and Orientation program'.

28. Identify six topics which may be covered in the 'department/role-specific' section of a workplace 'Induction and Orientation program'.

29. List four reasons it is necessary for employers to provide training to staff.

30. Identify and describe one of the options available to organisations for training their workforce.

31. In terms of workplace relations describe/define a 'grievance'.

32. Identify five stakeholders who may be involved in identifying and resolving a workplace grievance.

33. Describe six ways consultation can be used in the identification of workplace grievances.

34. Name six ways consultation can be used in the resolution of workplace grievances.

35. Give six ways consultation can be used in the workplace regarding the introduction of new work practices.

36. Identify five stakeholders who may be involved in the development of formal industrial procedures for a workplace.

37. Describe five actions which are commonly associated with developing effective industrial relations procedures.

38. Name five topics which may be the focus of formal industrial relations procedures in a workplace.

39. Identify eight keys when developing formal industrial relations procedures to be used by an organisation.

40. Identify six keys for 'agreed procedures' to be effective in an organisation.

41. Name four characteristics of a 'best practice' dispute resolution process.

42. Describe the four characteristics of the outcomes of a 'best practice' dispute resolution process.

43. List six requirements for monitoring the dispute resolution process.

44. What are the three fundamental options in relation to making adjustments to agreed procedures?

45. Identify six standard requirements which must apply when making adjustments to agreed industrial relations procedures.

46. Describe six services external private enterprise 'specialists' may provide in relation to industrial relations matters.

47. Give four examples of traditional services provided by government agencies to assist organisations with IR matters.

Answers to written questions

Manage and maintain workplace relations

D1.HML.CL10.17

D1.HRM.CL9.15

D2.TRM.CL9.14

The following are model answers only – Trainers/Assessors must use discretion when determining whether or not an answer provided by a Student is acceptable or not.

1. The ASEAN Ministers of Labour have adopted a set of ‘Guidelines on Good Industrial Relations Practice’: list the nine headings/topics in these Guidelines.

- Legal framework
- Fundamental rights of employers and workers
- Bipartite cooperation and collaboration
- Building mutual trust and respect
- Mutuality of purpose and benefits
- Dignity at work and highlighting best practices
- Good faith behaviour
- Effective labour dispute settlement
- Tripartite partnership and social dialogue.

2. From the headings identified in your answer to the previous question, select and expand on two of these.

No model answer – response will depend on headings selected.

3. In your own words explain what is meant by ‘Conditions of Employment’.

Answer should address/mention:

- ‘Conditions of employment’ are the terms and conditions under which a person is employed. They:
 - Represent the agreed minimum arrangements under which the employment relationship takes place
 - Must be adhered to by employers and employees
 - Form the basis of the employment contract for an individual
- Conditions of employment may be:
 - Prescribed by legislation
 - Contained in a standard contract
 - Negotiated with an employer.

4. Identify eight examples of 'Conditions of Employment'.

- Probationary period
- Wages
- Health and safety
- Conditions under which the work takes place
- Dress standards
- Flexible working arrangements
- Access to training/PD
- Termination
- Superannuation
- Need for confidentiality
- Restrictions.

5. From the examples identified in your answer to the previous question, select and expand on two of these.

No model answer – response will depend on examples selected.

6. What is a 'Letter of Offer', what does one contain and why is it used?

Answer should address/mention:

- The contents of the 'Conditions of Employment' and/or the work contract are often contained within a formal 'Letter of Offer' sent by the organisation to the person who has been selected for a job
- They are required to sign the contract within a given time – usually seven days – and return it to the employer as evidence:
 - They have accepted the position
 - They have read the contract of employment
 - They agree to be bound and abide by the terms contained in the agreement.

7. Identify 10 examples of documentation which may be contained in an 'Employee File'.

- Copy of the Job Statement (see below) for the role performed by the staff member
- Copy of the job vacancy advertisement placed for the job
- Copy of application for the position – in terms of:
 - Their Covering Letter
 - Their CV
 - References provided
 - Copies of qualifications
- Details of the interview conducted with the individual – with reference to (for example):
 - Interviewer notes taken at the time
 - Scores achieved by the applicant in relation to the KSC for the job as determined by those who conducted the interview
- Signed copy of the Letter of Offer/Employment Contract
- Ongoing performance management details
- Details of any internal training or PD undertaken
- Details of further external qualifications obtained after initial employment
- Details of any disciplinary action taken in relation to the staff member – such as:
 - Counselling sessions
 - Verbal warnings
 - Written warnings
- Details of extra responsibilities given to the person
- Details of promotions earned.

8. What two documents are combined/contained in a 'Job Statement'?

- The Job Description
- The Job Specification.

9. In your own explain the term ‘industrial matters’.

Answer should address/mention:

- ‘Industrial matters’ is a generic term
- Exact definitions and interpretations can be expected between countries
- It is important to consult local legislation to determine exactly what applies in individual countries
- One orientation to ‘industrial matters’ states it:
- “...means matters or things affecting or relating to work done or to be done in any industry, or the privileges, rights, duties or obligations of employers or employees in any industry”.

Examples of industrial matters include:

- (a) The employment of persons in any industry (including the employment of minors, trainees, apprentices and other classes of employees)
- (b) The remuneration (including rates of pay, rates for piece-work and allowances) for employees in any industry
- (c) The conditions of employment in any industry (including hours of employment, qualifications of employees, manner of work and quantity of work to be done)
- (d) Part-time or casual employment (including part-time work agreements)
- (e) The termination of employment of (or the refusal to employ) any person or class of persons in any industry
- (f) Discrimination in employment in any industry (including in remuneration or other conditions of employment) on a ground to which the Anti-Discrimination Act 1977 applies
- (g) Procedures for the resolution of industrial disputes
- (h) The established customs in any industry
- (i) The authorised remittance by employers of membership fees of industrial organisations of employees
- (j) The surveillance of employees in the workplace
- (k) The mode, terms and conditions under which work is given out, whether directly or indirectly, to be performed by outworkers in the clothing trades.

10. Describe three ways managers and supervisors can source details of what is required in relation to employment and industrial relations.

- Speaking to the HR department in the workplace
- Reading and becoming familiar with all employment-related documents
- Talking to senior and more experience managers and supervisors
- Speaking to key industry stakeholders (government agencies [employment and IR], unions, peak industry bodies, employer groups).

11. In your own words define 'industrial unrest'.

Answer should address/mention:

- 'Industrial unrest' is a generic term
- It is also known as:
 - Labour unrest
 - Industrial conflict
- Industrial unrest may be seen as:
 - Situations where employees are dissatisfied with what is happening in the workplace as a result of some conflict or tension between management and the workers
 - Instances where there is a dispute between employees and management
 - The result of a situation where staff are unhappy with existing or proposed working conditions in their workplace
 - Action taken by employees (see below 'Action taken by employees') in response to their dissatisfaction with what is happening in the workplace
 - Impacting just one individual worker – or a group of employees, or the entire workforce
 - Usually caused by issues relating to remuneration or working conditions.

12. Give six examples of 'industrial action' employees may take.

- Strikes
- Go-slows
- Work-to-rule action
- Lack of communication
- Passive non-compliance
- Intentional sabotage
- Active non-compliance
- Picketing.

13. Identify four possible generic reasons for industrial unrest.

- Social reasons/causes
- Economic reasons/causes
- Political reasons/causes
- Organisational reasons/causes
- Psychological reasons/causes.

14. Describe four ways managers and supervisors can or will become aware of industrial unrest in a workplace.

- Convening staff meetings – and listening to what employees say and what their issues, problems, complaints and concerns are
- Attending staff meetings (as distinct to *convening* them)
- Being directly informed verbally or through written communication (such as a 'Log of claims') – by:
 - An individual staff member
 - A group of employees
 - The union representative for the workplace or a discreet group of workers within the organisation
 - A representative from union Head Office working on behalf of their members
- Being informed by a third party there is a problem – which can occur:
 - When a concerned and well-meaning colleague shares their concerns about an issue impacting one/several of their co-workers
 - As a result of feedback from a customer – or in the form of a complaint
- Personal observation of activities and communication in the workplace – this is often referred to as 'management by walking around' and involves:
 - Talking to staff as they work
 - Watching staff performance of tasks
 - Examining/checking workplace conditions and facilities
- Realising normal activities of the workplace have been interrupted in some way – as a direct result of action taken by employees, such as:
 - Bans on working overtime
 - Work-to-rule
 - Go-slows
 - Non-compliance
 - Lack of usual cooperation.

15. Identify three keys when responding to industrial unrest.

- Respond promptly to all identified issues – and not allow matters to drag on or continue unresolved
- Involve the workers – in addressing or resolving the situation
- Ensure the cause of the problem/issue is addressed – and time is not wasted targeting symptoms of the issue
- Negotiate an agreed solution that allows (where/if possible) a win-win outcome for employer and employees – rather than a solution which:
 - Costs jobs
 - Reduces staff working hours
 - Imposes unacceptable cost burdens on the organisation – as a result of needing to spend more (or ‘too much’) on wages, resources or other demands.

16. Describe four possible actions management might take in response to industrial action by employees.

- Meeting with staff or their designated representative as part of an ongoing consultation process – to discuss the situation and generate a workable solution acceptable to all parties
- Investigating presented issues – which may require/involve:
 - Workplace inspections
 - Monitoring and collecting fact-based data about the matter under dispute or consideration
 - Gathering information from external sources relevant to the topic
- Writing reports regarding research undertaken, findings, and suggestions for action – and:
 - Presenting these to staff for their consideration and/or approval
 - Making recommendations to colleagues and senior management
- Involving specialist assistance – which may relate to:
 - Obtaining input from technical experts
 - Asking for help from government agencies
 - Requesting assistance from the relevant union
 - Conciliation-mediation
 - Arbitration
- Talking to staff involved – to:
 - Explain the stance and position of the organisation on the issue
 - Provide reasons/rationale for action taken and proposed
 - Advise and counsel them
 - Provide them with extra information to give them material from which to generate their own, balanced, objective and fact-based opinion

- Involving staff on an ongoing basis – in terms of (for example):
 - Including them when workplace decisions are made and asking for their contributions as part of the decision making process
 - Adding staff representatives to management teams and including them at management-level meetings
 - Capturing their input when workplace reviews, evaluations and initiatives are being planned and are taking place
- Acceding to demands/requests being made by employees and unions – where these are reasonable, legitimate or valid
- Locking staff out of the workplace – and refusing to re-open the business until:
 - Staff stop their industrial action
 - Agree to the proposed resolution being offered by the employer
- Dismissing non-compliant staff – in accordance with:
 - Local laws
 - Relevant employment instruments/agreements.

17. List six strategies for identifying possible external causes of industrial unrest.

- Read and/or listen to and watch the local media
- Join and participate in meetings and activities conducted by local bodies as appropriate to the nature/type of workplace
- Attend industry conferences and seminars – which often have topics, sessions and keynote speakers on industrial relations and employment-related matters
- Obtain and read reports on IR and employment-related data
- Network with other people – using a targeted group of contacts who have been identified
- Enter into a mentoring arrangement with a notable and experienced business owner/manager who has worked in a relevant sector or business
- Identify, 'bookmark' and visit and read selected websites
- Subscribe to receive hard copy or online information
- Talk to relevant people within the business about their thoughts on external issues
- Review and evaluate all 'Strategic Analyses' (SWOT Analyses).

18. What are the three basic options for responding to identified external issues which may cause industrial unrest?

- Do nothing
- Plan and prepare for action
- Take immediate action.

19. Describe five activities management might engage in when planning and preparing to deal with an external issue is judged to impact in the short-to-mid term future on the business.

- Undertaking standard risk management protocols
- Determining how the issue will impact the business
- Looking at how other organisations have responded
- Working out when the issues will impact
- Integrating new/revised protocols into existing other arrangements
- Arranging resources for what is required
- Reviewing and revising business-related plans.

20. Identify five standard ways of determining relevant conditions of employment for a workplace.

- Reading the individual work contracts/conditions of employment
- Reading relevant Awards
- Speaking to administration staff in the HR department and/or the Payroll section
- Talking to the manager, owner and/or other supervisors
- Asking the union that has responsibility for the employees in the organisation
- Contacting the government agency with responsibility for Employment, Manpower or similar.

21. List three generic actions to make sure all 'Conditions of Employment' requirements are being adhered in a workplace.

- Be 100% certain of all Awards and agreements which apply to all staff being employed – so there is full and comprehensive knowledge of the obligations which must be complied with
- Monitor documentation – such as:
 - Rosters
 - Time sheets
 - Staff pay advices
- Check and observe workplace practice – to:
 - Verify rostered hours are being adhered to
 - Make personal comparisons about the level of compliance actually being achieved with what is known should be occurring
 - Take immediate action to redress identified instances of non-compliance
 - Show staff that management is interested in honouring its employment-related promises
 - Encourage staff to raise incorrect/inappropriate working conditions/conditions of employment on-the-spot – as opposed to allowing an unsatisfactory situation to drag on.

22. Describe four possible outcomes if an organisation fails to implement the promised/stated (legally imposed) conditions of employment for their workers.

- Dissatisfied staff – who:
 - Are not committed to the organisation
 - Will not perform to their best
 - Start looking for employment else where
- Distrust among staff – in relation to:
 - All levels of management
 - Future promises and statements made by managers
- Bad/negative media coverage/PR – when the story leaks to the media
- Intervention by unions – on behalf of their members to, as necessary:
 - Recover money owed
 - Force compliance with agreed arrangements.
- Penalties/fines applied by government agencies – which may be levied for (for example):
 - Failure to comply with legislation
 - Fraudulent activities.
- Possible civil action – for Breach of Contract, where the contract is the ‘Contract of Employment’ between employer and employee.

23. Differentiate between ‘consultation’ and ‘communication’

Answer should address/mention:

- Consultation refers to:
 - Meeting with people – to discuss issues and show respect for their knowledge and ability to make valid contributions
 - Bringing parties together – to listen to information and develop solutions to problems
 - Asking people for their input – in order a working and acceptable/win-win outcome is generated
 - Exchanging information – to use as the basis for resolving a situation or developing a course of action which is suitable/acceptable
- Communication refers to:
 - Telling people what has been decided – based on the consultation which has taken place
 - Informing people of implementation arrangements/policies and procedures – which have been established
 - Giving verbal advice/information – to support and explain decisions and give surety about decisions which have been made

- distributing hard and/or soft copy information – so there is easily accessible detail available for staff to refer to in order to assist them with implementation of decisions which have been made
- Sharing information – to use as the basis for action (as opposed to information for the purposes of decision making).

24. Explain why ‘two-way communication’ is preferable to ‘one-way communication’ in terms of workplace/industrial relations.

Answer should address/mention:

- Two-way communication represents current and accepted management theory in workplace relations where employees are encouraged to participate in the operation of a business and contribute their knowledge and expertise to assist management in their running of the business
- Two-way communication is distinctly different to traditional one-way communication where:
 - Management tells staff what has been decided without any input from the workers and without any explanation for decisions made
 - Workers have no opportunity to provide comment/feedback on the communication given to them by management
- Two-way communications:
 - Is based on consultation – which underpins workplace cooperation and demonstrates respect for others and values their input
 - Is more effective than one-way communication in most business contexts where the knowledge of staff is central to all operational decisions
 - Is ‘inclusive’ in nature – meaning it includes and involves workers in decisions and actions taken.

25. Name three practical strategies for implementing useful workplace consultation.

- Holding regular meetings
- Using various communication techniques:
 - Distributing hard copy materials
 - Using emails
 - Lodging information on the intranet of the organisation
 - Including necessary information in regular internal staff newsletters
- Implementing practical management techniques:
 - Having an open door policy
 - Being seen in the workplace
 - Maintaining privacy and confidentiality
 - Acknowledging the contributions of employees
 - Asking for input

- Making sure current topics/issues are listed as agenda items
- Installing a Suggestion Box in the Staff Room
- Thanking people for communicating
- Rewarding exceptional contributions.

26. List six options for facilitating effective two-way communication in the workplace.

- Including (paid) time for staff to communicate
- Providing *pro forma* documentation such as forms and reports to help staff lodge or write communications
- Advising staff of channels of communication/s available within the organisation for them to use and providing advice on how to use those channels
- Developing and producing written communication policies and procedures
- Using appropriate language so communications can be understood:
 - Providing the same information in multiple languages
 - Using photographs and graphics
 - Not using complex language
- Providing training for staff in relation to communication:
 - Language issues
 - Reading and writing skills
 - Numeracy skills
 - Verbal skills
 - Using computers/technology/emails
 - Techniques for presenting ideas and making points
- Making formal presentations to staff
- Posting messages on the Staff Noticeboard in the Staff Room
- Using social media – where applicable and where this option has been deemed to be viable and acceptable
- Identifying and using/tapping into the workplace 'grapevine'
- Establishing a workplace 'Communication Book'
- Establishing a system of staff representatives.

27. Name six topics which may be covered in the 'generic' section of a workplace 'Induction and Orientation program'.

- Completion of necessary paperwork covering internal and legislative requirements
- Provision of 'Need to Know' information
- Tour of the workplace
- Allocation of organisation-specific items

- Basic safety requirements
- General information about the organisation
- Details of the culture of the organisation.

28. Identify six topics which may be covered in the 'department/role-specific' section of a workplace 'Induction and Orientation program'.

- Meeting the Department Head/Manager/Supervisor
- Detailed departmental tour
- Presentation of job/position description
- Distribution of a list containing organisation-based or industry-based terminology
- Presentation of additional information about the organisation
 - Methods of payment accepted
 - Action to take if there is a problem/dispute – with staff or with customers
 - Details of departmental/team meetings
 - Terms of Trade of the business
 - Hours and/or days of operation
 - Internal security protocols to protect people, data and the business in general
- Explanation of the Probationary Period
- Explanation of internal training required and/or available
- Explanation of company benefits which may be available
- Explanation of internal staff appraisal system in use by the business
- Allocation of role-specific items – as required:
 - Work station
 - Locker
 - Personal equipment necessary for the allocated role.

29. List four reasons it is necessary for employers to provide training to staff.

- To ensure employees are aware of basic requirements for the role they perform
- To create a competent and knowledgeable workforce
- To develop a multi-skilled pool of employees
- To satisfy the need for personal growth
- To ensure workers can work within the ever-changing business environment
- To comply with host country legislation.

30. Identify and describe one of the options available to organisations for training their workforce.

No model answer – response will depend on option selected.

31. In terms of workplace relations describe/define a 'grievance'.

- Any sort of work-based problem or issue
- A work-related complaint or conflict
- Something between staff and management/management and staff
- Something between staff/work colleagues.

32. Identify five stakeholders who may be involved in identifying and resolving a workplace grievance.

- Staff
- Unions
- Employer groups
- Boards of management – or other management personnel or representatives
- Government.

33. Describe six ways consultation can be used in the identification of workplace grievances.

- Providing formal, written procedures so there is a basis for action and a clear understanding of options available and the protocols to be followed
- Making sure all staff know there is a process for grievance *identification* and not just a process for grievance *resolution*
- Being alert to the warning signs of troubles – through paying attention to:
 - Body language of employees
 - What is being said, how it is being said and what is not being said
 - General 'feeling' in the workplace
- Talking with staff while in the workplace – as part of 'management by walking around'
- Encouraging staff to communicate issues at the first opportunity and not promoting a culture of 'put up and shut up'
- Establishing designated *employees* as workplace contacts for staff to speak to if they have a grievance to discuss/report
- Providing an opportunity for employees to raise grievances at any time staff are together with management
- Creating a 'grievance committee' which meets during paid working hours
- Preparing standard forms to assist staff record and report issues/complaints which are of concern to them
- Ensuring all staff committees are charged with the responsibility of identifying grievances as part of their standard charter.

34. Name six ways consultation can be used in the resolution of workplace grievances.

- Generating formal, written 'grievance resolution' procedures with input from staff and agreed to by them
- Making sure all staff are aware of what the 'grievance resolution' procedures are and how they operate
- Applying the 'grievance resolution' procedures equitably to all issues and personnel without fear or favour
- Using a 'grievance resolution' committee/body
- Sharing outcomes and decisions with other/all staff to facilitate learning and understanding relevant to the issue
- Integrating lessons learned into standard operations in terms of (for example) new/revised protocols, and inclusion of content into on-site training
- Following up with relevant parties after resolution has occurred to determine if additional/alternative action is required.

35. Give six ways consultation can be used in the workplace regarding the introduction of new work practices.

- Staff briefings – to advise of practices which need to be implemented at short-notice
- Staff training sessions – to enable integration of new procedures with other existing protocols
- Staff meetings – to advise staff in a more detailed manner of:
 - Rationale for and benefits of new work practices
 - Transitional arrangements for implementation including proposed schedule
 - Support available to underpin the initiatives
 - Monitoring and evaluation protocols to be used
- Staff de-briefing sessions – to discuss implementation, problems encountered, need for refinement of protocols and other matters deemed relevant by those implementing the new work practices
- An 'Open door policy' by management
- Meetings specially convened with staff to discuss the new work practices – where the sole topic of discussion/feedback is the new work initiative
- Management meetings –where an agenda item is created to allow discussion on the initiative
- Formal presentations – **by** staff and/or management **to** staff and/or management on implementation and results
- Visits by external stakeholders – to allow them to view implementation and observe the improvements brought about by the changes.

36. Identify five stakeholders who may be involved in the development of formal industrial procedures for a workplace.

- Employees from within the workplace – as a body, or their representatives
- Employee bodies – or union representatives
- Senior management of the organisation – or business owners, members of the Boards and/or line managers
- HR managers
- External professionals – with IR and HR expertise relevant to the topic/s being discussed/developed including employment/IR lawyers and consultants
- Government agencies and authorities – with specialist expertise and responsibility for areas being addressed.

37. Describe five actions which are commonly associated with developing effective industrial relations procedures.

- Commitment by management to develop IR procedures
- Prepare a plan for the process
- Review and research of relevant existing documentation
- Conduct of regular staff meetings during paid working hours
- Preparation of formal written policies and procedures – to reflect and support the agreed procedures.

38. Name five topics which may be the focus of formal industrial relations procedures in a workplace.

- Grievance procedures
- Dispute resolution
- Termination of employment
- Workplace change
- Enterprise agreements and workplace bargaining
- OHS
- Equal opportunity employment
- Anti-discrimination
- Mediation, Conciliation and Arbitration
- Performance appraisals and Productivity.

39. Identify eight keys when developing formal industrial relations procedures to be used by an organisation.

- The 'Guidelines on Good Industrial Relations Practice' adopted by the ASEAN Ministers of Labour should provide the context
- The final procedures developed for implementation must be workable – they must be able to be implemented
- All legislated requirements must be complied with
- All stakeholders are updated regarding the development process – and matters which have been resolved/decided, those presenting problems and new issues arising
- Final protocols must address the issues deemed important by the workforce – and not just what is important to management
- Final decisions taken about what is included (or excluded) from the IR procedures should be decided with reference to common sense, objectivity, inclusivity and the individual nature of each site-specific workplace
- All IR procedures must reflect and support/enable relevant employment instruments to operate – it is essential there is no conflict between the IR procedures and the content of the employment instruments
- Openness and honesty are fundamental to the process of development – there can be no truly fair and equitable outcome where this is missing
- Implementation of the procedures must follow from their development – the IR procedures must not be ignored
- There must be an awareness of the dynamic nature of the workplace – such that procedures to address new requirements can arise, and the need to refine existing protocols is ever-present in order to maintain their applicability and relevance
- Outcomes are communicated and promoted – so all staff (and managers and supervisors) are aware of what they are
- Monitoring activities to capture evidence to serve as the basis of evaluating the effectiveness of the IR procedures should be developed as part of the process of developing the actual IR protocols
- Identification of potential issues and their subsequent prevention or avoidance should be the focus of all IR procedures – as opposed to allowing problems to occur and then applying protocols to resolve them
- Files should be maintained of all stages of the process – so there are records for future reference to assist with interpretation of intention and/or decisions about action to be taken
- Clarity of purpose and unambiguous statements of intent and action are vital – there must be no doubt regarding what is intended, when it applies, and who it applies to
- Employees always have the right to be represented – by a person of their choosing when they are engaged in any form of IR procedure.
- Nothing in any IR procedure is allowable which enables, authorises, encourages or permits the use of coercion and/or victimisation of staff as way of handling a workplace relations issue.

40. Identify six keys for ‘agreed procedures’ to be effective in an organisation.

- All personnel must be aware of the protocols that exist – employees and managers
- Internal training must educate the workforce in the application and operation of all agreed procedures
- There must be easy and unfettered access to copies of all protocols – for all of the workforce
- Employees must be comfortable raising an issue safe in the knowledge they will not be victimised or harassed as a result
- All agreed policies and procedures must be adhered to – without exception, fear or favour
- Employees must be free to have their interests represented by a nominated third party
- All agreed protocols (policies and procedures) must be subject to regular review
- Agreed protocols must be revised where an identified legitimate reason to do exists.

41. Name four characteristics of a ‘best practice’ dispute resolution process.

A best practice dispute resolution process should:

- Be simple
- Allow appropriate stages so that matters can, wherever possible, be resolved at the workplace
- Encourage parties to agree on a process that suits them if the dispute reaches [the stage external authorities need to become involved]
- Provide [external authorities] with the necessary discretion and power to ensure settlement of the dispute if the dispute remains unresolved after the early stages of the dispute resolution procedure have been attempted.

42. Describe the four characteristics of the outcomes of a ‘best practice’ dispute resolution process.

Best practice dispute resolution outcomes should be:

- Quick - the issues should be resolved quickly rather than allowing them to escalate through inaction
- Fair - all relevant parties should be consulted so that all sides of the story are taken into account
- Handled sensitively - disputes should, where possible and appropriate, be resolved in a confidential context in order to minimise impact on employees not affected by the dispute
- Transparent - the procedure should be made known to every employee.

43. List six requirements for monitoring the dispute resolution process.

- Standard monitoring practices are designed and developed to meet individual needs of IR agreed procedures generated by the organisation – such as:
 - Use of observers
 - Recording of meetings
 - Pre-meeting briefings
 - Use of 360⁰ feedback
- Inclusion of staff in the development of monitoring procedures – to ensure their considerations are addressed as part of the overall process
- Development of draft monitoring protocols distributed to all stakeholders for comment and then reviewed and revised on basis of feedback received
- Monitoring protocols are included within and as part of agreed relevant industrial relations procedures
- Trials and tests are conducted of monitoring protocols – to:
 - Prove their suitability and evidence-gathering capacity
 - Give personnel experience in their implementation
 - Provide a further possible basis for the revision/fine-tuning of protocols
- Monitoring activities are employed every time procedures are utilised
- Emphasis on objectivity
- Involvement of employees in the monitoring process
- Overview of the implementation of procedures
- Sufficiency of data/information gained as a result of monitoring activities – to allow informed and valid decisions to be made on the basis of the data/evidence captured
- Analysis and evaluation of application of procedures – to determine deficiencies and/or need for revision/adjustments
- Documentation of evidence gathered as part of the monitoring process – so it can serve as a basis for later reference.
- Compliance with any mandatory obligations imposed by host country legislation – so the organisation discharges responsibilities imposed by local IR requirements
- Application of monitoring activities does not interfere with or influence ‘natural justice’ and the intended operation of the agreed procedures – that is to say, the monitoring protocols must serve implementation of the agreed procedures and not dictate or determine its implementation
- Results of monitoring procedures must be released to employees as standard practice (subject to suppression of privacy and confidentiality imperatives) – to demonstrate full disclosure, accountability and transparency.

44. What are the three fundamental options in relation to making adjustments to agreed procedures?

- Revisions to existing protocols – where small changes are made to current protocols to improve or update their effectiveness and relevance
- Deletion of existing protocols – which may be required when a topic is removed from workplace IR concerns as a result of legislated changes and/or changes to employment instruments
- Creation of new protocols – to support new issues raised by legislation, work instruments or workplace concerns.

45. Identify six standard requirements which must apply when making adjustments to agreed industrial relations procedures.

- All agreed procedures must be subject to regular and scheduled review – this schedule must be contained within the relevant protocols
- Timing considerations for review need to accommodate four standard requirements – that is, reviews should occur:
 - At scheduled times – annually is a useful standard
 - After every implementation of agreed procedures/monitoring activities
 - Whenever there is alteration to legislation which impacts existing agreed procedures/monitoring activities
 - Following amendments to employment instruments
- All revisions must be preceded by a review
- All decisions to amend exist arrangements must be fact-based – and be founded on objective evidence as opposed to supposition
- Staff (or their nominated representatives) must be an integral part of the review and/or revision process
- All protocols followed for the development of the original procedures must be adhered to when undertaking revisions/amendments – that is, there is a need to:
 - Develop a draft
 - Circulate the draft for comment/feedback
 - Revise draft as/if required
 - Obtain agreement/approval for revised draft/s
- All amendments need to be communicated to all stakeholders – which may require:
 - Integration of revised protocols into Staff Handbooks, policies and procedures
 - Inclusion of amendments into internal training
- Changes to protocols need to be ‘version controlled’ – so there is clear detail regarding:
 - Date protocols were reviewed
 - Brief overview of changes made
 - Date of next scheduled/annual review.

46. Describe six services external private enterprise ‘specialists’ may provide in relation to industrial relations matters.

- Industrial relations consulting – in relation to areas such as:
 - Managing workplace relations
 - Developing and maintaining Human Resources
 - Negotiating workplace instruments
 - Providing conciliation, mediation and arbitration services
 - Establishing relevant work-based groups/teams to facilitate optimum workplace industrial relations
- Training – with reference to:
 - Developing management expertise in workplace industrial relations
 - Informing workers of their IR rights and obligations
 - Providing general awareness training
 - Conducting relevant training in terms of practical work-based role plays and/or case studies
 - Preparing stakeholders to optimise their contribution to and participation in a consultative and collaborative workplace
- Resource development – to assist with all activities inherent in:
 - Developing suitable policies
 - Writing SOPs and agreed procedures to support/enable implementation of policies
 - Drafting legal employment instruments
- Offering legal advice – in terms of:
 - Mandatory obligations
 - Compliance
 - Plans for negotiation of industrial matters
 - Penalties
 - Options available to the organisation to respond to workplace issues
- Providing legal services – which may relate to:
 - Making presentations to bodies, representatives or authorities
 - Lodging applications and/or employment instruments
 - Registering agreed procedures with relevant agencies and/or other bodies
 - Advocating on behalf of the organisation
- Record keeping – in relation to:
 - Personnel files
 - Wages, taxation and superannuation
 - Training

- Leave
- Promotion
- Ongoing employment-related services – such as:
 - Recruitment and staff selection
 - Staff discipline and termination
 - Staff performance and appraisal
 - Dealing with unions and other groups/representative bodies.

47. Give four examples of traditional services provided by government agencies to assist organisations with IR matters.

Traditional services provided by government agencies can include:

- Hard copy information – such as:
 - Copies of legislation and regulations
 - Handouts including Alerts and Advice Sheets
 - Sample/recommended Codes of Practice
 - Sample employment instruments
 - Samples of approved ‘agreed procedures’
- Verbal advice – from officers and Inspectors, with reference to matters such as:
 - Interpretation of legislation and terminology
 - Anecdotal information together with historic and workplace-specific context
 - Suggestions for action
- Workplace-specific visits – for the purposes of:
 - Conducting inspections
 - Examining documentation
 - Providing training
- Online references – which will address topics identified above plus:
 - Links to other relevant sites
 - Reports and statistics
 - Industry initiatives – current and proposed
 - Support and funding available to assist businesses with implementation and compliance
 - Online access to a variety of mandatory reporting requirements as well as application and/or payment protocols
 - General and specific enquiries.

Observation checklist

Student name	
Assessor name	
Location/venue	
Unit of competency	Manage and maintain workplace relations D1.HML.CL10.17 D1.HRM.CL9.15 D2.TRM.CL9.14
Dates of observation	
Instructions	- Over a period of time observe the student completing each of the following tasks: - Build a positive industrial relations climate - Implement formal industrial procedures - Enter the date on which the tasks were undertaken - Place a tick in the box to show they completed each aspect of the task to the standard expected in the enterprise - Complete the feedback sections of the form, if required.

Did the candidate	Yes	No
Element 1: Build a positive industrial relations climate		
Provide employees with accurate and impartial information on industrial matters likely to affect them	☐	☐
Identify workplace changes or issues which may cause industrial unrest promptly and take appropriate action	☐	☐
Identify potential causes of industrial unrest in external environments promptly and take appropriate action	☐	☐
Apply conditions of employment in accordance with relevant legislation and industrial awards/agreements	☐	☐
Implement mechanisms for consulting with staff and facilitating two-way communication	☐	☐
Ensure induction and training initiatives are used effectively to develop a competent workforce	☐	☐
Utilise consultation processes for the identification and resolution of grievances and the implementation of new work practices	☐	☐

General comments:

Candidate signature		Date	
Assessor signature		Date	

Third Party Statement

Student name:			
Name of third party:		Contact no:	
Relationship to student:	☐ Employer ☐ Supervisor ☐ Colleague ☐ Other <i>Please specify: _____</i> <i>Please do not complete the form if you are a relative, close friend or have a conflict of interest]</i>		
Unit of competency:	Manage and maintain workplace relations D1.HML.CL10.17 D1.HRM.CL9.15 D2.TRM.CL9.14		
The student is being assessed against industry competency standards and we are seeking your support in the judgement of their competence. Please answer these questions as a record of their performance while working with you. Thank you for your time.			
Do you believe the trainee has demonstrated the following skills? <i>(tick the correct response]</i>	Yes	No	Not sure
Provides employees with information on relevant industrial matters	☐	☐	☐
Identifies internal and external issues which may cause industrial unrest promptly and takes appropriate action	☐	☐	☐
Applies conditions of employment in accordance with legislation and industrial awards/agreements	☐	☐	☐
Consults with staff and facilitates two-way communication including consultation processes for identification and resolution of grievances	☐	☐	☐
Ensures induction and training initiatives are used effectively	☐	☐	☐
Contributes to development of formal industrial procedures in consultation with relevant parties	☐	☐	☐
Uses agreed procedures to resolve employee relations	☐	☐	☐
Monitors agreed processes and makes adjustments in consultation with relevant parties	☐	☐	☐
Accesses specialist assistance in industrial relations matters when appropriate	☐	☐	☐

Comments/feedback from Third Party to Trainer/Assessor:

Third party signature:

Date:

Send to:

Competency recording sheet

Name of Student		
Name of Assessor/s		
Unit of Competency	Manage and maintain workplace relations	D1.HML.CL10.17 D1.HRM.CL9.15 D2.TRM.CL9.14
Date assessment commenced		
Date assessment finalised		
Assessment decision	Pass Competent / Not Yet Competent (Circle one)	
Follow up action required (Insert additional work and assessment required to achieve competency)		
Comments/observations by assessor/s		

Place a tick (✓) in the column to reflect evidence obtained to determine Competency of the student for each Performance Criteria.

Element & Performance Criteria	Observation of skills	3rd Party Statement	Oral Questions	Written Questions	Work Projects	Other
Element 1: Build a positive industrial relations climate						
Provide employees with accurate and impartial information on industrial matters likely to affect them						
Identify workplace changes or issues which may cause industrial unrest promptly and take appropriate action						
Identify potential causes of industrial unrest in external environments promptly and take appropriate action						
Apply conditions of employment in accordance with relevant legislation and industrial awards/agreements						
Implement mechanisms for consulting with staff and facilitating two-way communication						
Ensure induction and training initiatives are used effectively to develop a competent workforce						
Utilise consultation processes for the identification and resolution of grievances and the implementation of new work practices						

Place a tick (✓) in the column to reflect evidence obtained to determine Competency of the student for each Performance Criteria.

Element & Performance Criteria	Observation of skills	3rd Party Statement	Oral Questions	Written Questions	Work Projects	Other
Element 2: Implement formal industrial procedures						
Contribute to the development of formal industrial procedures in consultation with relevant parties						
Use agreed procedures to resolve employee relations in accordance with enterprise policy and legal requirements						
Monitor agreed processes and make appropriate adjustments in consultation with relevant parties						
Identify the need for and access specialist assistance in industrial relations matters when appropriate						
Candidate signature:			Date:			
Assessor signature:			Date:			

